ORDINANCE 17-003Z

ORDINANCE OF THE TOWN OF NORTH PROVIDENCE AMENDING THE EXISTING COMMUNITY COMPREHENSIVE PLAN AND MAP

WHEREAS, the Town Council of the Town of North Providence desires to amend, by Ordinance, its existing Community Comprehensive Plan and Map with regards to the land use classification of Lots 338,339 & 365 on Plat 6, said property bordering Douglas Avenue; and

WHEREAS, an application was filed by Douglas Avenue Associates, Inc. And U.S. Development II, LLC requesting the amendment the North Providence Community Comprehensive Plan and Map(the "application").

WHEREAS, the application was heard by the North Providence Town Council at a public hearing on May 2, 2017;

WHEREAS, after the taking of all testimony and presentment of all witnesses, a Decision was rendered by the Town Council on May 2, 2017, which is attached hereto and incorporated by reference(the "Decision"); and

WHEREAS, The Town Council desires the passage of this Ordinance to complete the amendment of its Community Comprehensive Plan; and

NOW, THEREFORE, BE IT HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION ONE: That the Decision of the North Providence Town Council of May 2, 2017, as set forth in the written Decision dated May 2, 2017, attached hereto as **Exhibit A** and incorporated by reference herein, with regard to the Application of Douglas Avenue Associates, Inc. and U.S. Development II, LLC to Amend the North Providence Community Comprehensive Plan so that the land located on Tax Assessor's Plat 6, Lots 338, 339 & 365 be changed from a current land use classification of Medium Density Residential and Commercial Village to a district denoted as Industrial is hereby confirmed and ratified.

SECTION TWO: In conformance with the Decision, the following sections of the Community Comprehensive Plan shall be amended to read as follows:

(1) Map Amendments: To amend the Comprehensive Plan Future Land Use Map (FLUM) to change the future land use of Assessor's Plat 6 Lots 338, 339 & 365 from its current designated use of Medium Density Residential and Commercial Village to Industrial Use.

(2) Text Amendments: To amend the Land Use Element entitled "Industrial" (contained on Pages 29-30) to include the following bullet point/language:

- Consider rezone of existing Commercial uses and infill parcels located along Douglas Avenue in the vicinity of the North Providence/Providence line to ML-Manufacturing Limited to accommodate existing business expansion and rehabilitation and allow new limited light manufacturing uses on infill parcels.

SECTION THREE: The provisions of this Ordinance are severable and, in the event that any provision of this Ordinance is determined to be invalid, for any reason, the remaining provisions shall remain in full force and effect.

SECTION FOUR: This Ordinance shall take effect upon adoption and any Ordinance inconsistent herewith is hereby repealed.

APPROVED AS TO FORM AND LEGALITY:

TOWN SOLICITOR

ADOPTED: May 18, 2017

COUNCIL PRESIDENT

APPROVED: May 19, 2017

MAYOR

TOWN CLERK

TOWN OF NORTH PROVIDENCE TOWN COUNCIL

In Re: Application of Douglas Avenue Associates, Inc. and U.S. Development II, LLC

DECISION

The above matter came before the North Providence Town Council, on May 2, 2017, with regard to an application filed by the above-referenced party to amend the existing North Providence Comprehensive Plan. The representative of the applicants was present and was represented by legal counsel and after a public hearing before the North Providence Town Council, the Town Council, upon a roll call vote of five (5) ayes and zero (0) nayes, makes the following decision:

1. That the Application of Douglas Avenue Associates, Inc. and U.S. Development II, LLC to Amend the North Providence Community Comprehensive Plan so that the Comprehensive Plan Future Land Use Map (FLUM) shall be changed to reflect the future land use of Assessor's Plat 6 Lots 338, 339 & 365 from its current designated use of Medium Density Residential and Commercial Village to Industrial Use, is hereby approved.

2. In conformance with the Decision, the following sections of the Community Comprehensive Plan shall be amended to read as follows:

(A) The Comprehensive Plan Future Land Use Map (FLUM) shall be amended to change the future land use of Assessor's Plat 6 Lots 338, 339 & 365 from its current designated use of Medium Density Residential and Commercial Village to Industrial Use.

(2) That the Land Use Element entitled "Industrial" (contained on Pages 29-30) shall include the following bullet point/language:

- Consider rezone of existing Commercial uses and infill parcels located along Douglas Avenue in the vicinity of the North Providence/Providence line to ML-Manufacturing Limited to accommodate existing business expansion and rehabilitation and allow new limited light manufacturing uses on infill parcels.

3. That the plans submitted and the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence, as amended simultaneously herewith, as approved by the Town of North Providence and provided to the State of Rhode Island for approval.

4. That any approval by the Town of North Providence Town Council is subject to the further approval by the State of Rhode island, Statewide Planning Department.

Entered as a Decision of the North Providence Town Council, the local authority, on this 2nd day of May, 2017.

ADOPTED: 5/2/17

COUNCIL PRESIDENT

TOWN CLERK